

[Accused Name] vs State on [Date]

IN THE HIGH COURT OF [STATE]

Criminal Appeal No. 512/22

FIR No. 71/19

PS: [Police Station]

U/s: 302/34 IPC read with Section 27 of the Indian Evidence Act, 1872

[Accused Name] Versus State of [State]

Date of hearing: [Date]

Date of judgment: [Date]

JUDGMENT

1. This appeal arises out of the judgment of conviction and order of sentence passed by the trial court, whereby the appellant was convicted for the offence punishable under Section 302 read with Section 34 of the Indian Penal Code, 1860 ("IPC"), and sentenced to undergo rigorous imprisonment for life.
2. The principal ground of challenge in this appeal pertains to the admissibility of the disclosure statement made by the appellant while in police custody, which led to the recovery of the weapon of offence, and which was admitted by the trial court under Section 27 of the Indian Evidence Act, 1872 ("IEA"), as an exception to the general bar on confessions under Sections 25 and 26 of the IEA.
3. Learned counsel for the appellant submits that the disclosure statement did not distinctly relate to the fact discovered, and that the requirements of Section 27 IEA were not satisfied, inasmuch as the police already had prior knowledge of the location of the weapon before the appellant's alleged disclosure. It is further submitted that in the absence of admissible evidence under Section 27 IEA, the conviction under Section 302/34 IPC cannot be sustained.
4. Learned counsel for the State, on the other hand, submits that the disclosure statement squarely falls within the scope of Section 27 IEA, as it led to the discovery of a fact not previously known to the investigating agency, and that the recovery, read with the other corroborative evidence, is sufficient to sustain the conviction under Section 302/34 IPC.
5. Having examined the record, including the disclosure statement, the recovery memo, and the testimony of the investigating officer, this Court finds that the conditions for admissibility under Section 27 IEA are satisfied, and that the discovery of the weapon of offence at the instance of the appellant lends considerable corroboration to the prosecution case under Section 302/34 IPC.
6. In view of the above, this Court does not find any infirmity in the findings of the trial court. The conviction of the appellant under Section 302 read with Section 34 of the Indian Penal Code, 1860, is upheld, and the present appeal is dismissed.

(SAMPLE / SYNTHETIC DOCUMENT PREPARED FOR SOFTWARE TESTING PURPOSES ONLY)

HIGH COURT OF [STATE]